ACTION BY UNANIMOUS WRITTEN CONSENT
IN LIEU OF THE ORGANIZATIONAL MEETING
OF THE BOARD OF DIRECTORS
OF
TOBE ENERGY CORP.

The undersigned, constituting all of the members of the Board of Directors (the "***Board***") of **Tobe Energy Corp.**, a Delaware corporation (the "***Company***"), pursuant to Section 141(f) of the Delaware General Corporation Law (the "***DGCL***"), adopt the following resolutions by unanimous written consent:

Appointment of Directors

The authorized number of directors is initially set at three and the Action by Written Consent of Sole Incorporator attached as **Exhibit A** appointing the Company's initial directors is ratified and approved.

Certificate of Incorporation

The Certificate of Incorporation of the Company filed with the Delaware Secretary of State is ratified and affirmed.

Appointment of Officers

The following persons are appointed as officers of the Company, to the offices set forth opposite such person's name, to serve at the pleasure of the Board:

Chief Executive Officer	Colby DeWeese
President	Caleb Lareau
Secretary	Louis Mounsey
Treasurer	Colby DeWeese

Adoption of Bylaws

1. The Bylaws attached as **Exhibit B** are adopted as the Bylaws of the Company.

2. The Secretary of the Company is authorized and directed to execute a Certificate of Secretary regarding the adoption of the Bylaws, to insert the Bylaws in the minutes of the proceedings of the Board and to see that a copy of the Bylaws is kept at the Company's principal office, as required by law.

Employer Tax Identification Number; State Tax Identification Numbers

The officers of the Company are authorized and directed to apply to (i) the Internal Revenue Service for an Employer Identification Number on Form SS-4, and (ii) any applicable state authority for a taxpayer identification number in such state.

Withholding Taxes

The Chief Executive Officer is authorized and directed to consult with the bookkeeper, auditors and attorneys of the Company in order to be fully informed as to, and to collect and pay promptly when due, all withholding taxes for which the Company may now be (or hereafter become) liable.

Statement by Foreign Corporation

The officers of the Company are authorized and directed to execute and file any and all documents and take such actions as are necessary to qualify the Company as a foreign corporation in any jurisdiction in which it is required to do so.

Designation of Depositary

1. The Chief Executive Officer and the President of the Company are authorized to do the following:

(a) To designate one or more banks or similar financial institutions as depositories of the funds of the Company.

(b) To open, maintain and close general and special accounts with any such depositories.

(c) To cause to be deposited, from time to time, in such accounts with any such depository, such funds of the Company as such officers deem necessary or advisable, and to designate or change the designation of the officer or officers or agent or agents of the Company authorized to make such deposits and to endorse checks, drafts and other instruments for deposit.

(d) To designate, change or revoke the designation, from time to time, of the officer or officers or agent or agents of the Company authorized to sign or countersign checks, drafts or other orders for the payment of money issued in the name of the Company against any funds deposited in any of such accounts.

(e) To authorize the use of facsimile signatures for the signing or countersigning of checks, drafts or other orders for the payment of money, and to enter into such agreements as banks and similar financial institutions customarily require as a condition for permitting the use of facsimile signatures.

(f) To make such general and special rules and regulations with respect to such accounts as they may deem necessary or advisable, and to complete, execute and certify any customary printed blank signature card forms in order to exercise conveniently the authority granted by this resolution and any resolutions printed on such cards are deemed adopted as a part of this resolution.

2. All form resolutions required by any such depository are adopted in such form used by such depository, and the Secretary is (i) authorized to certify such resolutions as having been adopted by this consent and (ii) directed to insert a copy of any such form resolutions in the minutes of the proceedings of the Board immediately following this consent.

3. Any such depository to which a certified copy of these resolutions has been delivered by the Secretary of the Company is authorized and entitled to rely upon such resolutions for all purposes until it has received written notice of the revocation or amendment of these resolutions adopted by the Board.

Fiscal Year

The fiscal year of the Company will end on December 31st of each year.

Principal Office

The principal executive office of the Company will be at a location determined by the officers of the Company.

Management Powers

The officers of the Company are authorized to sign and execute in the name and on behalf of the Company all applications, contracts, leases and other deeds and documents or instruments in writing of whatsoever nature that may be required in the ordinary course of business of the Company and that may be necessary to secure for operation of the corporate affairs, governmental permits and licenses for, and incidental to, the lawful operations of the business of the Company, and to do such acts and things as such officers deem necessary or advisable to fulfill such legal requirements as are applicable to the Company and its business.

Stock Certificates

1. The shares of Common Stock of the Company (and any additional classes or series of stock that the Company may issue from time to time) may be represented by certificates (which, to the fullest extent permitted by law, may include electronic stock certificates) substantially in the form of stock certificate as determined by any officer of the Company, provided that the Company may issue uncertificated shares for some or all of any or all classes or series of its stock if deemed advisable by the officers and in the event electronic stock certificates are later determined by a court not to constitute a "stock certificate" any shares purportedly represented by an electronic stock certificate will be deemed to be uncertificated shares.

2. Any stock certificates representing shares of stock of the Company will bear the name of the Company, the number of shares represented thereby, the name of the owner of such shares and the date such shares were issued.

Sale of Common Stock

1. The officers of the Company are authorized and directed to sell and issue an aggregate of 10,000,000 shares of the Company's Common Stock for the aggregate

purchase price set forth below, payable in cash, or by any other form of consideration permitted by applicable law, as follows:

Name of Purchaser	**Number of Shares**	**Total Purchase Price**
Caleb Lareau	100,000	$1.00
Louis Mounsey	100,000	$1.00
Colby DeWeese	9,800,000	$98.00

2. The Board determines, after due consideration of all relevant factors, that the per share purchase price is equal to or in excess of the fair market value of the Company's Common Stock as of the date of this consent.

3. The forms of Common Stock Purchase Agreement attached as **Exhibit C-1**, **Exhibit C-2** and **Exhibit C-3** are adopted, ratified and approved.

4. The sale and issuance of Common Stock to each of the above-named individuals or entities will be conditioned upon the receipt by the Company of (a) the purchase price for said stock and (b) an executed Common Stock Purchase Agreement, including executed copies of any and all documents attached to the Common Stock Purchase Agreement as exhibits; *provided, however,* that the President of the Company is authorized and directed to amend, alter or revise the form of Common Stock Purchase Agreement as the President, in the President's sole discretion, deems necessary or appropriate to accurately reflect the terms of the contemplated sale of Common Stock to each individual purchaser.

5. The shares of Common Stock authorized to be sold and issued by the Company will be offered and sold in accordance with the terms of the applicable state and federal securities laws.

6. The officers of the Company are authorized and directed, for and on behalf of the Company, to execute a form of notice of such issuance, or any other required filings related to such issuance, and to cause such notice or other required filings, when duly executed, to be filed with the applicable government agencies.

7. The shares of Common Stock authorized to be sold and issued by the Company will be offered and sold in accordance with the terms of the exemption from registration provided by Section 4(a)(2) of the Securities Act of 1933, as amended or any other applicable exemption.

8. Any shares of Common Stock now or hereafter issued by the Company that are subsequently repurchased by the Company will be immediately retired and resume the status of authorized and unissued shares of the capital stock of the Company in accordance with Section 243 of the DGCL.

9. The officers of the Company are authorized and directed, for and on behalf of the Company, to take such further action and execute such additional documents as

each may deem necessary or appropriate to carry out the purposes of the above resolutions.

Adoption of 2025 Equity Incentive Plan

It is desirable for the Company to establish an equity incentive plan for the purpose of providing incentive and nonstatutory stock options and certain other stock awards to employees, directors, consultants, and advisors of the Company and affiliates of the Company. The Board has the authority to adopt such a plan pursuant to the DGCL and the Company's Bylaws.

1. The 2025 Equity Incentive Plan (the "***Plan***") is hereby adopted and approved in the form attached hereto as **Exhibit D**.

2. The standard forms of Stock Option Grant Notice (including the forms of Option Agreement and Notice of Exercise attached thereto), Early Exercise Stock Purchase Agreement, Restricted Stock Award Grant Notice, for cash and for services, and Stock Option Grant Notice – Non-U.S. (attaching forms of Option Agreement – Non-U.S. and Notice of Exercise – Non-U.S. (collectively with the form of Stock Option Grant Notice – Non-U.S., the "***Non-U.S. Option Forms***")) in substantially the forms attached hereto as **Exhibits E**, **F**, **G-1**, **G-2** and **H**, respectively, with any such nonsubstantive changes thereto as the Company's management and legal counsel may deem to be necessary or advisable, are adopted and approved for use under the Plan, unless otherwise provided by the Board (or its delegate pursuant to the terms of the Plan) at the time the applicable award is granted under the Plan (including, with respect to the Non-U.S. Option Forms, the addition of country-specific terms and conditions in Appendix II to the Option Agreement – Non-U.S., or updates or modifications to the Non-U.S. Option Forms necessary or advisable on the advice of foreign counsel or otherwise to comply with the laws of any jurisdiction).

3. Unless otherwise provided by the Board at the time an option is granted under the Plan, all options granted under the Plan will be evidenced by and subject to the terms and conditions of the standard forms of Stock Option Grant Notice and Option Agreement, as amended from time to time by the Board, and the Stock Option Grant Notice will be appropriately designated as an "Incentive Stock Option" or a "Nonstatutory Stock Option," as the case may be (provided, that options granted under the Plan to recipients outside of the U.S. will be evidenced by and subject to the terms and conditions of the Non-U.S. Option Forms, as amended from time to time by the Board, and subject the additions, updates and modifications described above).

4. 1,111,120 shares of the authorized but unissued or reacquired shares of the Common Stock of the Company (the "***Share Reserve***") are reserved for issuance pursuant to the Plan, subject to adjustment as provided in the Plan.

5. The aggregate maximum number of shares of Common Stock of the Company that may be issued under the Plan pursuant to the exercise of incentive stock options will be equal to three multiplied by the Share Reserve, subject to the Share Reserve and subject to adjustment as provided in the Plan.

6. The officers of the Company are authorized and directed to submit the Plan for stockholder approval within 12 months of the date hereof (and any stockholder consent with respect to the foregoing may be delivered in any manner permitted under the DGCL including, without limitation, by electronic mail, facsimile, or other electronic transmission).

7. The officers of the Company are authorized and directed to take such actions and to execute and file, or cause to be executed and filed, one or more registration statements or such other applications and other documents as are necessary or appropriate for compliance with the securities laws of all applicable jurisdictions.

8. The officers of the Company are authorized and directed to make such filings and applications, to execute and deliver such documents and instruments, and to do such acts and things as any such officer deems necessary or appropriate in order to implement the foregoing resolutions, and any and all such actions that may have been taken to date are hereby authorized, ratified, approved and confirmed in all respects.

Indemnification Agreement

1. The Indemnification Agreement in substantially the form attached hereto as **Exhibit I** (the "***Indemnification Agreement***") is adopted and approved.

2. The officers of the Company are authorized to execute and deliver Indemnification Agreements on behalf of the Company with current and future (i) executive officers of the Company and (ii) members of the Board, in each case as determined by the Company, with any changes to such agreements determined by the proper officers of the Company to be desirable, such determination to be conclusively evidenced by such officer's execution and delivery of a definitive Indemnification Agreement, and to take whatever action is deemed necessary to perform the Company's obligations under the Indemnification Agreements.

3. The officers of the Company are authorized and directed to solicit stockholder consent to the adoption of the form of Indemnification Agreement.

Ratification and Discharge

1. All prior acts done on behalf of the Company by the sole incorporator or the sole incorporator's agents are ratified and approved as acts of the Company.

2. The sole incorporator or the sole incorporator's agents are discharged from any further liabilities or duties with respect to the Company and the Company further agrees to indemnify and hold harmless the sole incorporator or the sole incorporator's agents from any liability incurred in the past or the future with respect to organizing the Company.

Delivery of Stockholder Consents

Any and all written consents of the stockholders of the Company may be delivered in any manner permitted under the DGCL including, without limitation, by electronic mail, facsimile, or other electronic transmission.

Incorporation Expenses

The officers of the Company are authorized and directed to pay the expenses of the incorporation and organization of the Company.

General Authorizing Resolution

The officers of the Company are authorized and directed to make such filings and applications, to execute and deliver such documents and instruments, and to do such acts and things as such officer deems necessary or advisable in order to obtain such licenses, authorizations and permits as are necessary or desirable for the Company's business and to carry out the foregoing resolutions.

[Remainder of page intentionally left blank]

This Action by Unanimous Written Consent of the Board of Directors may be executed in two or more counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, Uniform Electronic Transactions Act or other applicable law) or other transmission method and any counterpart so delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes. This Action by Unanimous Written Consent of the Board of Directors will be filed with the minutes of the proceedings of the Board.

Each of the undersigned has executed this Action by Unanimous Written Consent of the Board of Directors as of the date set forth under such person's name.

Caleb Lareau

Caleb Lareau

Date: May 9, 2025

Louis Mounsey

Louis Mounsey

Date: May 9, 2025

Colby Freeman DeWeese

Colby DeWeese

Date: May 9, 2025

EXHIBIT A

ACTION BY WRITTEN CONSENT OF SOLE INCORPORATOR

EXHIBIT B

BYLAWS

EXHIBIT C-1

FORM OF COMMON STOCK PURCHASE AGREEMENT – CALEB LAREAU

EXHIBIT C-2

FORM OF COMMON STOCK PURCHASE AGREEMENT – LOUIS MOUNSEY

EXHIBIT C-3

FORM OF COMMON STOCK PURCHASE AGREEMENT – COLBY DEWEESE

EXHIBIT D

2025 EQUITY INCENTIVE PLAN

EXHIBIT E

FORM OF STOCK OPTION GRANT NOTICE

EXHIBIT F

FORM OF EARLY EXERCISE STOCK PURCHASE AGREEMENT

EXHIBIT G-1

FORM OF RESTRICTED STOCK AWARD GRANT NOTICE (CASH)

EXHIBIT G-2

FORM OF RESTRICTED STOCK AWARD GRANT NOTICE (SERVICES)

EXHIBIT H

NON-U.S. OPTION FORMS

EXHIBIT I

FORM OF INDEMNIFICATION AGREEMENT